



SETTLEMENT AGREEMENT

THIS AGREEMENT is entered into by the United States Department of Agriculture, Animal and Plant Health Inspection Service ("APHIS"), and Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC, with reference to the following facts:

1. At all times mentioned herein, Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC operated as a Exhibitor under the Animal Welfare Act (7 U.S.C. § 2131 *et seq.*) (the "AWA") at the facility located at 5456 U.S. Route 1, Vass, NC.

2. APHIS has documented evidence of Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC's non-compliance with the AWA and the regulations promulgated thereunder (9 C.F.R. § 1.1 *et seq.*), and specifically, has documented evidence of Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC's failure to provide adequate veterinary care through daily observations and timely communication with the Attending Veterinarian (AV), use of appropriate methods to prevent and treat injuries/diseases, and assuring the AV had appropriate authority to oversee animal care and use; failure to ensure facility enclosures were structurally sound and maintained in good repair; failure to provide potable water to animals at all times and keep water receptacles clean and sanitary; failure to remove excreta from primary enclosures often enough to prevent contamination, minimize disease hazards, and reduce odors; failure to keep premises (buildings and grounds) clean and in good repair; failure to employ a sufficient number of adequately trained employees to maintain a professionally acceptable level of husbandry practices; failure to provide potable water in sufficient quantity to



every bird housed at the facility and keep bird water receptacles clean and sanitized; failure to ensure rabbit primary enclosures were kept reasonably free of excreta, hair, and other debris by periodic cleaning; failure to ensure an adequate barrier between a nonhuman primate primary enclosure and the public, as required by the AWA regulations and AWA standards for the humane handling and treatment of animals (9 C.F.R. §§ 2.40(a)(2), 2.40(b)(2), 2.40(b)(3), 3.125(a), 3.130, 3.131(a), 3.131(c), 3.132, 3.156, 3.56(a)(1), and 3.78(e)).

3. APHIS has not instituted an administrative enforcement action based on the findings described above in paragraph 2.

4. APHIS and Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC have determined to settle the issues related to the potential violations of the AWA and the regulations and standards issued thereunder, as described above.

NOW, THEREFORE, it is agreed as follows:

5. Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC admits that the Secretary has jurisdiction in this matter, and waives oral hearing and further procedure.

6. Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC consents and agrees to the following:

a. Patrick Milcendeau agrees to sell, donate, and/or transfer ownership and possession of any animals on his premises, regardless of ownership, within twelve (12) weeks from the date Patrick Milcendeau signs this Settlement Agreement.

b. Animal Care will, upon written request, grant a one-time exemption from the licensing requirements for the transfer, movement, and/or sale of any animals that Patrick Milcendeau holds at the



time Patrick Milcendeau signs this Settlement Agreement, to include the transportation of animals that are less than eight (8) weeks of age.

c. Animal Care will, upon written request, grant an exemption for Patrick Milcendeau to retain a reasonable number of animals that are maintained for his own personal use and enjoyment, provided that the laws of the jurisdiction where Patrick Milcendeau lives allow him to keep the animals.

d. As of the date Patrick Milcendeau signs this Settlement Agreement, AWA license 55-C-0322 is hereby revoked.

7. Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC and any partnerships, firms, corporations or other legal entities that he controls or in which he has a substantial interest, financial or otherwise, are permanently disqualified from (a) obtaining an Animal Welfare Act license, and (b) engaging in activities governed by the Animal Welfare Act (7 U.S.C. § 2131 *et seq.*) and regulations issued thereunder (9 C.F.R. § 1.1 *et seq.*), either directly or indirectly, on or off 5456 U.S. Route 1, Vass, NC.

8. Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC consents and agrees that his failure to comply with the terms of this Settlement Agreement shall automatically void paragraph 8 below, and that APHIS shall have the right to immediately institute enforcement proceedings against Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC based upon the non-compliant items documented at 5456 U.S. Route 1, Vass, NC, in connection with animal welfare investigation NC230005-AC, and any future violations, and to pursue any and all remedies available to APHIS under the AWA.



9. For and in consideration of Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC's agreements and actions described in paragraph 6 above, and the promises and admissions of Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC set forth herein, APHIS agrees not to institute an administrative or civil enforcement action against Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC in connection with the alleged AWA violations documented in animal welfare investigation NC230005-AC.

APHIS and Patrick Milcendeau dba Dunrovin Exotic Animal Sanctuary and Dunrovin Country Store, LLC warrant and represent that their respective representatives, whose signatures appear below, have the authority to execute this Settlement Agreement and to bind each of the parties, respectively, to this Settlement Agreement.

Patrick Milcendeau

Signature: _____

Date: 1/28/25

U.S. DEPARTMENT OF AGRICULTURE
ANIMAL AND PLANT HEALTH INSPECTION SERVICE

Signature: _____

Date: _____

Andrea McNally, Director
Investigative and Enforcement Services
Animal and Plant Health Inspection Service
United States Department of Agriculture